

SENATE No. 800

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to pharmacists as healthcare providers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>12/2/2025</i>

SENATE No. 800

By Mr. Moore, a petition (accompanied by bill, Senate, No. 800) of Michael O. Moore for legislation relative to pharmacists as healthcare providers. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1425 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to pharmacists as healthcare providers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 To provide for the development of a statewide protocol for health condition testing,
2 screening, and treatment by pharmacists for qualified conditions.

3 (a) Pursuant to a statewide written protocol approved by the Division of Public Health, a
4 pharmacist may order, test, screen, and treat health conditions that include all of the following:

5 (1) The list of qualified conditions for testing, screening, and treatment or therapy shall
6 include Influenza, Streptococcal infections, COVID-19 or any other emerging and existing
7 public health threats identified by the Division of Public Health if permitted by an order, rule, or
8 regulation.

9 (2) A pharmacist who orders, tests, screens, or treats health conditions under this section
10 may use any test that may guide clinical decision making that is waived under the federal

Clinical Laboratory Improvement Amendments of 1988, or the federal rules adopted thereunder, or any established screening procedure that is established via a statewide protocol.

(3) A pharmacist may delegate the administrative and technical tasks of performing a test waived by the federal Clinical Laboratory Improvement Amendments of 1988 to an intern or pharmacy technician acting under the supervision of the pharmacist.

(4) This section prohibits the denial of reimbursement under health benefit plans for services and procedures performed by a pharmacist that are within the scope of the pharmacist's license and would be covered if the services or procedures were performed by a physician, an advanced practice nurse, or physician's assistant. Thus, an insurance carrier and/or pharmacy benefit manager shall develop adequate provider and consult codes as authorized by this act for pharmacy compensation.